Copyright
What is covered and what is not covered

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What is protected by copyright?

- The broad reach of copyright law applies to any work that meets three requirements.
- 1. Original (meets the minimum spark of originality)
- 2. Works of authorship
- 3. fixed in a tangible medium of expression.
- Aspects original to the work can be protected by copyright. However, copying unprotected material is not infringement.

What is not protected by copyright?

- 1. Ideas. Copyright should not restrict the free flow of ideas this is how copyright (which restricts many kinds of free speech) remains consistent with the freedom of speech.
- Procedures
- Process systems
- Methods of operation
- Discoveries
- Titles, slogans, and other short phrases
- Lists of ingredients
- Familiar symbols or designs. Example: A stop sign
- Choreographic works that have not been videotaped or noted same applies for speeches

Can I Legally Steal Someone's Idea?

- Yes, you can. If you have not signed a nondisclosure agreement, if your friend tells you their original idea for a story and you go on to make millions after writing your own story using their idea, they cannot sue you.
- If copyright is supposed to protect authors, then why is it okay to steal their ideas? If others can freely copy the author's ideas, does that not decrease the incentive to produce ideas?
- Ideas cannot be copyrighted, but the expression of an idea can.
- Protecting the expression of ideas, but not the ideas themselves, is how a balance is created between the benefits of copyright (protection for authors) and the drawbacks of copyright (restriction placed on creativity)

What is the difference between stealing an idea and stealing its expression?

- The rule is that the idea is not protected by copyright, but how the idea is expressed is.
- This rule can be challenging to apply and varies on a case-by-case basis. If a person copied a novel word-for-word, or if a bootlegger sells posters of a copyrighted painting, or bit by bit copies of a computer program that is copying copyrighted material and therefore infringement, but it's rarely that simple.
- Neither the statute nor case law defines an idea or expression.

Abstractions Test

- The abstractions test is how courts decide if a defendant has copied protected expression.
- During the abstractions test, the unprotected parts of a work are filtered out (ideas, facts, etc) and then the remaining protected parts are examined to see if they are too similar.
- The more original a work is, the more copyright protection the author will have.

How much can I copy before it is infringement?

- Elements that necessarily follow from the unprotected ideas are unprotected.
- The scenes a faire doctrine states that elements of a work may be unprotected if they are commonly found in works of that genre.
- The Flash is a superhero with super speed that is a creation of DC; Quicksilver is also a superhero with super speed that is a creation of Marvel that appeared 24 years later. Although the character The Flash is protected under copyright, a superhero with super speed is not.

The Merger Doctrine

- Sometimes an idea can only be expressed in one or two ways. The expression is protected to the extent that the idea constrains its expression.
- The illustrations on a product's label are often creative and, therefore, covered by copyright protection. However, the nature of the product frequently constrains the nature of the illustrations. A canister of hot chocolate will usually have marshmallows in it. These depictions are not protected by copyright.

The Wizard Of Oz

- The book *The Wonderful Wizard of Oz* by Frank Baum became a part of the public domain in 1956.
- Before MGM purchased the rights to the first novel and released their 1938 film, all Oz adaptations were either Baum's projects or sanctioned by his estate. While the Wizard of Oz story is not protected under copyright, expressions that are unique to the 1938 film are.
- The ruby slippers are silver in the book, but they are ruby red in the movie because this was the first film that was shown in technicolor. Could you include Dorthy wearing red slippers in a Wizard of Oz adaptation without asking MGM for permission? Is it okay if they are silver?

Ruby Slippers

- The silver slippers from the book are public domain; the ruby slippers are not.
- This is why in Wicked the shoes are silver instead of red.
- Disney had to get the rights to use ruby red slippers in 1985's "Return to Oz".

The Wizard of Oz

- Can a person adapt the Wizard of Oz that depicts the wicked witch like MGM did without asking their permission?
- Can they use the same shade of green for the witch's skin?
- Can she be wearing the same outfit?
- Can the witch say, “I’ll get you my pretty?”

The Wicked Witch of The West

- To use the same shade of green for her skin or outfit or to characterize her in the same way, in your adaptation of the Wizard of Oz, you would need permission from MGM.
- How does Wicked get away with using so many elements from the Wizard of Oz movie after claiming Elphaba is inspired by Marget Hamilton in The Wizard of Oz?
- Though the witches are similar in appearance in both adaptions and perform the same actions, the wicked witch is characterized as a sympathetic character in Wicked. In contrast, in The Wizard Oz, she is depicted as pure evil. Her outfit and appearance are also similar enough that the connection between the two can be made but distinct enough to avoid copyright infringement.

Nosferatu

- In 1897, Bram Stoker published Dracula.
- In 1922, F.M. Murnau released the silent film Nosferatu, declaring it an adaptation of Dracula.
- The plots of the two works are similar, with both depicting a centuries-old vampire targeting a married woman after holding her husband hostage, who is eventually vanquished. However, while the plots are similar, the two are very different.
- After seven years of litigation, Nosferatu was declared as an unauthorized derivative and Florence Stoker, who was the holder of copyright, was not paid damages. Still, she was granted her request for all copies of Nosferatu to be destroyed.

Differences and Similarities between Nosferatu and Dracula

- The names are different.
- In Nosferatu, the vampire is killed shortly after leaving his home by sunlight as a result of the actions of the female protagonist. In Dracula, he is hunted down by a group of men and staked through the heart after centuries of going from town to town, murdering people.
- Vampires are characterized differently. Count Orlock is reserved and uninterested in the company of others beyond drinking their blood, while Count Dracula is charming and charismatic.
- Count Dracula goes to different places to drink people's blood and acts as an invading predator. Count Orlock did not intend to leave his home until the solicitor arrived trying to sell him an estate elsewhere.
- Nosferatu almost immediately attacks Hutter and wishes to do the same to his wife, whereas Dracula never bites Harker; instead, he converses with him about literature and wants to seduce Mina Harker and drink her blood.
- Nosferatu is depicted as an infector, whereas Dracula is a predator.

Did Florence set a good or bad precedent?

- Nosferatu claimed to be an adaptation of Dracula without securing licensing rights from the copyright holder. This is copyright infringement.
- Would you consider her asking for all movie copies to be destroyed as restricting ideas? Would it have been better if she'd asked for the money made off of the film?
- While the idea for Nosferatu is taken from Dracula, the two creations differ in expression in a number of ways.
- If Nosferatu hadn't claimed to be an adaptation of Dracula, would people have recognized it as such, and would Florence have had a case for copyright infringement?

Can Nestle Sue me for making cookies?

- No, lists of ingredients cannot be copyrighted. However, if you copied a complete recipe, instructions, and photographs included from a cookbook and then tried to include it in a cookbook of your own you intended to market, then yes, you can be sued.
- If Plankton successfully stole the Krabby Patty formula and started selling Krabby Patties at the Chum Bucket, could Mr. Krabs sue him for copyright infringement?

Answer

- No, Mr. Krabs can’t sue for copyright infringement, but he can sue for trade secret misappropriation.

Functional Aspects of Works

Copyright does not protect any idea, method, procedure, process, system, or method of operation.

There would be no copyright protection for an original safety procedure for scuba gear.

Functional elements, such as manufacturing methods or designs of machines, aren't copyrightable, but they are patentable.

It depends on whether the functional element is creative and, therefore, belongs in the realm of copyright or functional, which brings it into the realm of patent.

The End